

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND-----X
SALVATORE PULICE,

Plaintiff,

-against-

CITY OF NEW YORK, WILLIAM GAVIGAN,
ALDO YUBINI, CHRISTOPHER McKENNA, JESSE
COLON, RICHARD GUERRIERI, MALCOLM
DANZIGER, STEPHANIE MAZZA, PAUL
MONTANA and JEFFREY TASZYMOWICZ,Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
November 15, 2021**SIM & DEPAOLA, LLP***Attorneys-at-Law*

42-40 Bell Boulevard - Suite 405

Bayside, New York 11361

(718) 281-0400

By: /s/ Samuel C. DePaola

Samuel C. DePaola, Esq.

Attorney for Plaintiff

TO: **CITY OF NEW YORK**

Via Corporation Counsel Of The City of New York
100 Church Street
New York, New York 10007

Sgt. WILLIAM GAVIGAN (Shield No. 2246)

Det. CHRISTOPHER McKENNA (Shield No. 3320)

Via Intel CIS FIO Program
One Police Plaza
New York, New York 10038

Lt. PAUL MONTANA

Det. ALDO YUBINI (Shield No. 3700)

P.O. STEPHANIE MAZZA (Shield No. 9173)

Via 122nd Precinct
2320 Hylan Boulevard
Staten Island, New York 10306

Det. JESSE COLON (Shield No. 1559)

Via 121st Detective Squad
970 Richmond Avenue
Staten Island, New York 10314

Sgt. RICHARD GUERRIERI (Shield No. 1567)

Via Strategic Response Group 5 - Staten Island
One Police Plaza
New York, New York 10038

Det. MALCOLM DANZIGER (Shield No. 2001)

Via NYPD Headquarters
One Police Plaza
New York, New York 10038

Sgt. JEFFREY TASZYMOWICZ (Shield No. 4637)

Via Patrol Borough Staten Island Investigations Unit
One Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
SALVATORE PULICE,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.

CITY OF NEW YORK, WILLIAM GAVIGAN,
ALDO YUBINI, CHRISTOPHER McKENNA, JESSE
COLON, RICHARD GUERRIERI, MALCOLM
DANZIGER, STEPHANIE MAZZA, PAUL
MONTANA and JEFFREY TASZYMOWICZ,

Defendants.
-----X

Plaintiff, **Mr. SALVATORE PULICE**, by and through the undersigned attorneys,
Sim & DePaola, LLP, for his complaint against Defendants, **CITY OF NEW YORK,**
WILLIAM GAVIGAN, ALDO YUBINI, CHRISTOPHER McKENNA, JESSE COLON,
RICHARD GUERRIERI, MALCOLM DANZIGER, STEPHANIE MAZZA, PAUL
MONTANA and JEFFREY TASZYMOWICZ, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress against defendants vis-à-vis sections 1983 and 1988, of title 42 to the Code of Laws of the United States, for the violations of his civil rights under the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.
2. The following claims arise from an October 4, 2018, incident, in which defendants, acting under color of state law, subjected Plaintiff to illegal searches and seizures, excessive force and deprived him of his rights to Due Process and Fair Trial.

3. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Within ninety (90) days of the accrual dates of the state law claims herein, Plaintiff served the New York City Comptroller's Office with written notice of said claims.

5. Over thirty (30) days have elapsed since the service of said notices, and these matters have not been settled or otherwise disposed of.

6. Plaintiff has complied with municipal Defendant's demand for an oral examination, pursuant to section 50-h of the New York General Municipal Law or no such demand has been noticed within the time permitted by law.

7. The state law claims herein have been commenced within one-year-and-ninety-days of the dates from which they arose.

8. The above referenced acts caused Plaintiff to be deprived of his right to be free from unreasonable searches and seizures, in addition his right to be afforded Due Process and Fair Trial.

9. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, with all interest then accrued, in addition to such other and further relief, as this Court may deem just and proper.

PARTIES

10. Plaintiff, Mr. Salvatore Pulice ("Mr. Pulice"), resides in Richmond County, New York.

11. The Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

12. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives, and supervisory officers, including the individually named Defendants herein.

13. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel, including the individually named defendants herein, obey the laws of the United States, as well as the City and State of New York.

14. Defendants, WILLIAM GAVIGAN ("GAVIGAN"), ALDO YUBINI ("YUBINI"), CHRISTOPHER McKENNA ("McKENNA"), JESSE COLON ("COLON"), RICHARD GUERRIERI ("GUERRIERI"), MALCOLM DANZIGER ("DANZIGER"), STEPHANIE MAZZA ("MAZZA"), PAUL MONTANA ("MONTANA") and JEFFREY TASZYMOWICZ ("TASZYMOWICZ") were, at all relevant times herein, police officers, detectives, sergeants, lieutenants, inspectors or other supervisory officers, employed by the NYPD, and, as such, were acting in the capacities of agents, servants and employees of the City of New York. Defendants were, at all relevant times herein, believed to be assigned to the 122nd Precinct of the NYPD. Defendants, GAVIGAN, YUBINI,

McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, are being sued in their individual and official capacities.

15. At all relevant times herein, Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

16. On October 4, 2018, at approximately 1:00 p.m., in the vicinity of 944 Patterson Avenue, Staten Island, New York, Plaintiff was approached by defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, who never identified themselves as police officers and who were dressed in civilian clothing while wearing nothing that would identify them as law enforcement.

17. Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, then violently tackled Plaintiff to the ground.

18. After tackling Plaintiff to the ground, Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, proceeded to punch, kick and strike Plaintiff with various unknown objects all about his body, face, head, legs and arms, despite Plaintiff being unarmed and offering no resistance.

19. Shortly thereafter, Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, forcibly affixed metal handcuffs to Plaintiff's wrists in an excessively tight fashion.

20. Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, then proceeded to again violently punch, kick and strike Plaintiff, while he was defenselessly pinned down facing the ground with his wrists handcuffed behind his back.

21. Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, did not possess a lawful reason to approach, stop, seize or arrest Plaintiff at said stated date and time, as Plaintiff was not observed to be committing crimes or violations of the law and defendants were not informed by any witnesses that Plaintiff had committed any crimes or violations of the law.

22. Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, then forcibly dragged Plaintiff to the side of a nearby public roadway.

23. Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, eventually realized that Plaintiff was in serious need of immediate medical attention due to their gratuitous use of excessive force against Plaintiff during and after the arrest process.

24. Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, arranged for an ambulance to

respond to the location, so that Plaintiff would be afforded much needed medical treatment for his myriad physical injuries.

25. Said ambulance transported Plaintiff to Staten Island University Hospital, where he was medically treated and diagnosed with a plethora of serious physical injuries about his entire body, including fractures, hematomas, lacerations and contusions, which were inflicted by defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ.

26. Plaintiff was caused to remain in said hospital for a total of six (6) days due to the severity of his various injuries.

27. Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, then proceeded to forward evidence that was fabricated, misleading or incomplete to Richmond County prosecutors, so that a criminal prosecution would be initiated against Plaintiff.

28. Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, were fully aware that they never possessed a lawful reason to stop, arrest or apply the level of force that was used against Plaintiff, but knowingly chose to state otherwise to prosecutors.

29. Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, falsely claimed and informed prosecutors that Defendants GAVIGAN and YUBINI sustained physical injuries as a result of Plaintiff resisting arrest, despite defendants' complete knowledge that defendants sustained no such injuries relative to the arrest of Plaintiff.

30. Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, also engaged in the suppression of exculpatory evidence by failing to disclose to prosecutors the presence of video evidence that contradicted defendants' versions of events.

31. Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, failed to disclose to prosecutors their lack of any credible evidence against Plaintiff prior to violently effectuating his arrest through the use of excessive force.

32. Plaintiff was further wrongfully deprived of his liberty and freedom of movement after his criminal court arraignment, because he was confined to Rikers Island Correctional Facility, until he was finally released on, or about, June 11, 2019.

33. At all times relevant hereto, the Defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, were involved in the decision to arrest, use excessive force and maliciously prosecute Plaintiff without probable cause, or failed to intervene when they observed applying excessive force during the apprehension of Plaintiff.

34. Plaintiff asserts that the defendants, including GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, who violated his civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission of such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at

the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

35. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers or supervisors.

36. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

37. The Constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies

remain systemic throughout the NYPD and its individual commands. Additionally, the NYPD promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has been reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee police officers.

38. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

39. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled "Ex-Cop Details NYPD 'Collar Quotas' – Arrest Black and Hispanic Men, 'No Cuffs on Soft Targets' of Jews, Asians, Whites: Court Docs."

40. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled "I Got Tired of Hunting Black and Hispanic People," which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz,

describing a police force that measures the quality of police work by the quantity of minority arrests.

41. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

42. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons,

including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

43. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

44. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came from the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

45. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One

Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

46. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in the violations to Plaintiff’s civil rights, as described herein.

47. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

48. Defendants’ actions were so blatantly violative of Plaintiff’s civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

49. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

50. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

51. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including defendants, GAVIGAN,

YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ.

52. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted in no disciplinary or corrective action of any kind.

53. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

54. The aforementioned acts of defendants, including the CITY, GAVIGAN, YUBINI, McKENNA, COLON, GUERRIERI, DANZIGER, MAZZA, MONTANA and TASZYMOWICZ, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as enumerated and set forth by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.

55. As direct or proximate results of said acts, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, the loss of earnings and potential earnings, substantial and permanent physical and psychological injuries, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION
Unlawful Search & Seizure Under
New York State Law

56. The above paragraphs are hereby incorporated by reference as though fully set forth.

57. Defendants subjected Plaintiff's person and property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

58. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

59. Plaintiff did not consent to the unreasonable searches and seizures to his persons or property.

60. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

61. Accordingly, defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to section 12, of Article I to the constitution of the State of New York and section 8, of Article II to the New York Civil Rights Law.

62. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

63. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION**Unlawful Search & Seizure Under
42 U.S.C. § 1983 *Against* Individual Defendants**

64. The above paragraphs are hereby incorporated by reference as though fully set forth.

65. Defendants subjected Plaintiff's person and property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

66. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his persons and property.

67. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

68. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

69. Accordingly, defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

70. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION**Assault & Battery Under
New York State Law**

71. The above paragraphs are hereby incorporated by reference as though fully set forth.

72. Defendants caused Plaintiff to fear for his physical wellbeing and safety and placed him in apprehension of immediate harmful or offensive touching.

73. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent or other legal justification therefor.

74. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 *Against* Individual Defendants

76. The above paragraphs are hereby incorporated by reference as though fully set forth.

77. The Defendants violated Plaintiff's rights, under the Fourth and Fourteenth Amendments to the Constitution of the United States, because they used unreasonable force without the consent of Plaintiff.

78. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.

79. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTIONDenial of Right to Due Process Under
New York State Law

80. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

81. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

82. Defendants forwarded said fabrications and false information to prosecutors.

83. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiff after legal process had attached following his arraignment in criminal court.

84. Accordingly, defendants violated Plaintiff's right to Due Process, pursuant to sections 1, 2 & 6, of Article I to the constitution of the State of New York, and section 12, of Article II to the New York Civil Rights Law.

85. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTIONDenial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

87. The above paragraphs are hereby incorporated by reference as though fully set forth.

88. Defendants engaged in the fabrication of evidence likely to influence a jury's decision.

89. Defendants forwarded said fabrications and false information to prosecutors.

90. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiff after legal process had attached following his arraignment in criminal court.

91. Accordingly, defendants violated Plaintiff's civil rights, pursuant to the Fourth, Fifth, Sixth and Fourteenth Amendments to Constitution of the United States.

92. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under
New York City Law

93. The above paragraphs are here incorporated by reference as though fully set forth herein.

94. Defendants' acts or series of acts constituted the commission of a misdemeanor or felony against Plaintiff, as defined in state or federal law, which presented a serious risk of physical injury to Plaintiff, regardless of whether said acts actually resulted in criminal charges, prosecutions or convictions.

95. Accordingly, defendants committed crimes of violence against Plaintiff and violated Plaintiff's civil rights, pursuant to section 10-403 of the Administrative Code of the City of New York.

96. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

98. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

99. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

100. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

102. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

103. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

104. Accordingly, the Defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

105. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

106. The above paragraphs are hereby incorporated by reference as though fully set forth.

107. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

108. Defendant City breached those duties of care.

109. Defendant City placed the individually named defendants herein in a position where they could inflict foreseeable harm.

110. Defendant City knew or should have known of the individual named defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiff.

111. Defendant City failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiff.

112. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION
Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 *Against* Defendant City

113. The above paragraphs are hereby incorporated by reference as though fully set forth.

114. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of those who may interact with the individually named defendants to such Constitutionally repugnant behavior, such as Plaintiff.

115. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must or should have been aware of.

116. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to their deliberate indifference toward the rights of those who may come into contact with the defendant City's employee police officers, including the individually named police officers herein.

117. Defendant City's employee police officers engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to the exhibition of deliberate indifference by defendant City and its officials, policymakers or supervisors toward the rights of individuals, who may come into contact with said officers, such as Plaintiff.

118. Defendant City's repeated willful refusals or unexcused failures to install or apply corrective or preventive measures constitutes its tacit approval or deliberate indifference with respect to violations of the civil or Constitutional rights of those who may come into contact with its NYPD officers.

119. Defendant City's conduct resulted in violations of Plaintiff's civil rights, under the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) Awarding Plaintiff compensatory and punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- m) Awarding Plaintiff reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, and all applicable sections of the Administrative Code of the City of New York;
- n) Together with the costs and disbursements of this action with all interest then accrued.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
November 15, 2021

SIM & DEPAOLA, LLP

Attorneys-at-Law

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400

By: /s/ Samuel C. DePaola

Samuel C. DePaola, Esq.

Attorney for Plaintiff

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of SIM & DEPAOLA, LLP, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and, as to those matters, I believe it to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
November 15, 2021

/s/ Samuel C. DePaola
SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

SALVATORE PULICE,

Plaintiff,

-against-

CITY OF NEW YORK, WILLIAM GAVIGAN, ALDO YUBINI, CHRISTOPHER
MCKENNA, JESSE COLON, RICHARD GUERRIERI, MALCOLM DANZIGER,
STEPHANIE MAZZA, PAUL MONTANA and JEFFREY TASZYMOWICZ,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard

Suite 405

Bayside, New York 11361

Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorneys for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for